

# Privacy and Recording Consent

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Data Controller: pdoom UG (haftungsbeschränkt)  
Contact: [mihir@pdoom.org](mailto:mihir@pdoom.org)  
Project: crowd-cast data collection

This consent form is separate from the Data Purchase and Participation Agreement. It covers what data is collected, how it is used, and your rights under data protection law (GDPR). This version (v2026-09-28) also applies to data you uploaded before accepting it.

## What is recorded

- Screen video of the applications you have selected for recording
- Keyboard and mouse events (keystrokes, clicks, scrolls, cursor movement)
- App and window metadata (which application is active, window titles, timestamps)
- Technical and diagnostic data (operating system, app version, display setup, and the recorder's diagnostic and crash logs)

## What is NOT recorded

- Audio or microphone input
- Camera or webcam
- Applications you have not selected for recording
- Anything during paused or stopped periods

## You control what gets recorded

- You choose which applications crowd-cast records. Unselected apps are not captured.
- You can pause or stop recording at any time.
- You can delete recording segments before they are uploaded.

## What you must avoid recording

Even within selected apps, you are responsible for making sure you do not record:

- Passwords, credentials, or login screens
- Private messages or personal conversations
- Meetings, calls, or video chats
- Work covered by an NDA or confidentiality agreement
- Employer-confidential or client-confidential material
- Medical, legal, or financial records

If you accidentally capture something sensitive, pause recording and delete the segment if possible.

## How your data is used

- Reviewed by p(doom) for quality control and safety checks
- Used for research, AI model training, and evaluation
- Included in public dataset releases, meaning the recordings could be downloaded and used by other researchers, developers, and the general public
- Licensed or sold to research partners and companies, including for commercial AI training

What "public release" means in practice: If your accepted data is included in a publicly released dataset, it will be available for anyone to download and use. p(doom) takes steps to filter out sensitive content before release, but you are the first line of defense: do not record things you would not want made public.

## Legal basis for processing

p(doom) processes your data on the following legal bases:

- Recording collection: Your explicit consent (GDPR Art. 6(1)(a)). You choose to install the tool, select apps, and start recording.
- Uploaded data (retention, review, research, publication, licensing): p(doom)'s legitimate interest (GDPR Art. 6(1)(f)) in maintaining and using data that you uploaded and sold to p(doom) under the Data Purchase Agreement. p(doom)'s legitimate interest is in training and evaluating AI models and in building datasets for AI training, including public releases and licensing to research partners and companies. This interest is balanced by the fact that you voluntarily recorded the data, chose what to share, were fully informed about its use (including public release and licensing), and are paid for it under the Data Purchase Agreement.
- Special category data: Your explicit consent (GDPR Art. 9(2)(a)) for any inadvertently captured special category data.
- Technical and diagnostic data: p(doom)'s legitimate interest (GDPR Art. 6(1)(f)) in keeping the recorder working, fixing problems with your installation, and documenting how recordings were captured.
- Personal information (name, email, postal address, country of residence, payout and bank details, and the confirmations you give during onboarding): Contractual necessity (GDPR Art. 6(1)(b)). Your compensation rate may depend on your country of residence.

## Stopping participation

You can stop participating at any time by stopping the recorder and notifying p(doom) at [mihir@pdoom.org](mailto:mihir@pdoom.org).

- Future recordings: No further data will be collected from you.
- Rejected data: Data that p(doom) rejects in review (because it is private or sensitive, corrupted, legally risky, staged, or mostly idle) is deleted.
- Uploaded data: Data you have uploaded has been sold to p(doom) and is retained and used under p(doom)'s legitimate interest. It is not removed on request, except where GDPR requires it (see the right to object and the special category data section). Data already received by third parties cannot be retracted.

You may withdraw your Art. 9 consent for special category data processing at any time. If you withdraw, p(doom) will take reasonable steps to identify and redact special category data from your recordings. For data already included in a published dataset, p(doom) relies on Art. 9(2)(e) (data manifestly made public by the data subject) as a fallback basis, given that you voluntarily contributed recordings to a dataset you knew would be publicly released. This is why it is important to only record content you are comfortable sharing.

## International data transfers

Your recording data is stored on Amazon Web Services (AWS) infrastructure. For transfers to the United States, p(doom) relies on AWS's certification under the EU-US Data Privacy Framework. For transfers to other jurisdictions without an adequacy decision, p(doom) relies on the European Commission's Standard Contractual Clauses (SCCs). Microsoft Azure (used to review and summarise recordings) and Google (email and address validation) are also certified under the EU-US Data Privacy Framework. Research partners and companies outside the EU that license the dataset receive it under an EU adequacy decision, the EU-US Data Privacy Framework, or the Standard Contractual Clauses. When accepted data is included in a publicly released open dataset, it will be accessible worldwide. By participating, you acknowledge that public release constitutes a transfer to third countries.

## Data retention

- Recordings under review are stored on p(doom)'s secure infrastructure until accepted or rejected.
- Rejected recordings are deleted.
- Diagnostic logs are retained as long as the recordings they relate to, because they document how those recordings were captured.

- Accepted recordings are retained for the lifetime of the research dataset (anticipated minimum 10 years) to support ongoing AI research and reproducibility.
- Your personal information is retained for the duration of your participation and for 10 years afterward for German commercial and tax record-keeping obligations (HGB s257, AO s147), then deleted.

## Recipients

Your data may be shared with the following categories of recipients:

- Amazon Web Services (AWS) as infrastructure processor, bound by a data processing agreement
- Microsoft Azure as processor for AI-assisted review and summarisation of recordings, bound by a data processing agreement
- The general public, if your accepted data is included in a publicly released dataset
- Research partners and companies that license the dataset
- Qonto (payment processor) for processing payouts
- Google (Gmail for email communication, and address validation during onboarding)

## Special category data

Despite the controls described above, screen recordings may inadvertently capture information revealing health conditions, political opinions, religious beliefs, trade union membership, or other sensitive personal data ("special categories" under GDPR Art. 9). p(doom) does not intentionally collect this data and takes steps to identify and remove it before publication. However, some may pass through.

## Data Protection Officer

p(doom) has not appointed a Data Protection Officer. For data protection inquiries, contact [mihir@pdoom.org](mailto:mihir@pdoom.org).

## Provision of data

Providing your recordings is voluntary but necessary for participation in crowd-cast and receipt of compensation. If you do not provide recordings, p(doom) cannot pay you under the Data Purchase Agreement. Providing your personal information (name, email, postal address, country of residence, and payout details) is necessary for contract performance.

## Automated decision-making

p(doom) does not use your personal data for automated individual decision-making or profiling within the meaning of GDPR Art. 22. All payout decisions involve human review.

## Your rights

Under GDPR, you have the right to: access your data, correct inaccurate data, request deletion (for uploaded data, only where GDPR requires it, for example after a successful objection under Art. 21 or for special category data; uploaded data is otherwise not deleted on request), restrict processing, object to processing based on legitimate interest, data portability, and lodge a complaint with the Bayerisches Landesamt für Datenschutzaufsicht (BayLDA), Promenade 18, 91522 Ansbach, Germany ([lda.bayern.de](http://lda.bayern.de)).

Right to object (Art. 21): You have the right to object to processing of your data based on legitimate interest at any time, on grounds relating to your particular situation. If you object, p(doom) will cease processing unless it demonstrates compelling legitimate grounds that override your interests, rights, and freedoms. p(doom) assesses each objection individually. For uploaded data, the fact that you sold it to p(doom) under the Data Purchase Agreement is a significant ground for continued processing.

You may obtain a copy of the applicable international transfer safeguards by contacting [mihir@pdoom.org](mailto:mihir@pdoom.org). p(doom) will respond to data protection requests within 30 days in accordance with GDPR Art. 12(3). To exercise any of these rights, contact [mihir@pdoom.org](mailto:mihir@pdoom.org).